



IN CONTEXT

FOCUS

Privacy law

BEFORE

1995 The EU creates its Data Protection Directive aiming to safeguard any individual's personal information.

AFTER

2003 American singer/actor Barbra Streisand attempts to suppress online images of her home, giving rise to the "Streisand effect" of creating even more interest in them.

2015 France's regulatory body CNIL (National Commission on Informatics and Liberty) tries to force Google to apply EU rules on privacy worldwide.

2016 The General Data Protection Regulation (GDPR) is approved by the EU Parliament.

2019 The ECJ concedes that its attempt to legislate for a global enforcement of the right to be forgotten has to be restricted to Europe.

THE RIGHT TO BE FORGOTTEN

GOOGLE SPAIN V. AEPD AND MARIO COSTEJA GONZÁLEZ (2014)

In 2009, Spanish businessman Mario Costeja González was searching for his name on the Google search engine when he came across two legal notices that had appeared in a Spanish newspaper 11 years earlier—official acknowledgments that his house had been forcibly sold to clear a debt. When the newspaper digitized its old editions, Google had created a link to the notices. The issue was a matter of public record, but it meant that González's former financial woes were now available for anyone to access online. Because he worked as a financial adviser, this was potentially damaging for his career. The newspaper refused

to take down the notices, pointing out that it had been legally obliged to print them, and Google was similarly uncooperative. González went to court.

The Spanish Data Protection Agency agreed that Google should "delist" the links to González's earlier financial misadventures, but it had no means of compelling the company to obey. A Spanish court found itself unable to rule on the matter, so it was referred to the EU's highest court, the European Court of Justice (ECJ). The case raised two fundamental questions. First, is there a legal "right to be forgotten," with the past deemed legally irrelevant? And second, if such a right exists, how can it be applied to the internet?

Public interest

In its defense, Google argued that, as an American company, it was answerable only to US law; it was not the "data collector" and provided no more than a search engine to signpost information held by others; and because the information about González was demonstrably true, any attempt to suppress it represented an assault on freedom of expression—



Mario Costeja González refused to disclose how much money he spent on his legal battle with Google, insisting that it had been a fight for ideals, and those ideals had won.